



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: PUDC-24-89 | North Range Business Park – Assigned Zoning
Date: November 12, 2024

Background:

The item for consideration is an *Assigned Zoning*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 11/12/2024
- Public Services Committee 11/19/2024
- Second reading 11/25/2024
- Public Services Committee 12/03/2024
- Third and final reading 12/09/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their November 4, 2024 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Related Items to be introduced on 11/12/2024:

- PUDC-24-89: Annexation

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF LI LIGHT INDUSTRIAL AND BP BUSINESS PARK FOR TRACTS OF LAND BEING ANNEXED TO THE CITY SITUATE IN PORTIONS OF SECTIONS 4 AND 5, T13N, R67W, 6TH P.M., LARAMIE COUNTY, WYOMING (ALSO KNOWN AS 'NORTH RANGE BUSINESS PARK', LOCATED NORTHWEST OF THE I-80 AND ROUNDTOP ROAD INTERCHANGE)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne is initiating the annexation of property legally described as:

Lot 3, Block 1, North Range Business Park; Lots 1-2, Block 6, North Range Business Park, 3rd Filing; Lots 1-2, Block 8, North Range Business Park, 3rd Filing; Lots 1-5, Block 9, North Range Business Park, 3rd Filing; Lots 1-6, Block 10, North Range Business Park, 3rd Filing; Lots 1-2, Block 11, North Range Business Park, 3rd Filing; Lot 2, Block 12, North Range Business Park, 4th Filing; Lot 3, Block 1, North Range Business Park, 5th Filing; Lots 1-2, Block 13, North Range Business Park, 6th Filing; Lots 2-4, Block 15, North Range Business Park, 8th Filing; Lot 1, Block 17, North Range Business Park, 10th Filing; Lot 1, Block 16, North Range Business Park, 11th Filing; Lot 1, Block 18, North Range Business Park, 12th Filing; Lots 1-3, Block 1, North Range Business Park, 13th Filing; Lot 1, Block 1, North Range Substation; Lot 1, Block 1, BHE Ready Subdivision; and the rights of way for Diamond Creek Drive, Veta Drive, Logistics Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Bruns Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.

Section 2. That Section 2.2.8 of the UDC provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on November 4, 2024, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning

classifications of the real property as described in Section 1 is hereby established as LI Light Industrial for lands currently zoned County LI Light Industrial and BP Business Park for lands currently zoned County PUD (Resolution #091006-32, recorded Book 2159, Page 1128).

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



A COMMUNITY OF CHOICE

Planning and Development Department

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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

NOVEMBER 4, 2024

STAFF REPORT

FILE: PUDC-24-89: North Range Business Park – Assigned Zoning

LOCATION: Northwest of the intersection of Roundtop Road and I-80

REQUEST: Assigning zones to property that is being annexed to the City

ANNEXATION APPLICANT: City of Cheyenne

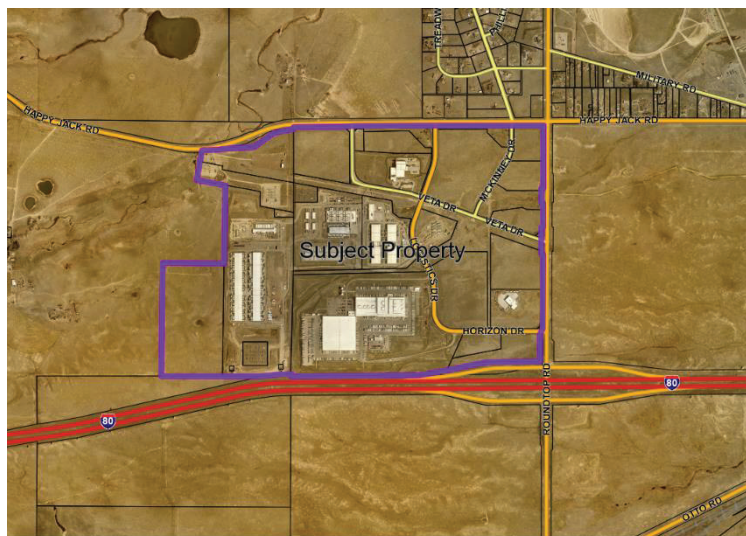
OWNERS: Microsoft Corporation, Cheyenne Light Fuel and Power Co, Walmart Stores East Ltd Ptnsp, Cheyenne Leads, Tri State Generation and Transmission Assoc Inc, Mine One Wyoming Data Center LLC, North Range Business Park Comm Owners Assoc, UMC Prop LLC, Westcom Properties LLC, University Corp For Atmospheric Research, Advanced Communications Technology Inc, YZY Capital Holdings LLC

ZONING: County LI, County PUD, County A-2

FUTURE LAND USE: Mixed-use Employment

PURPOSE: To establish City zoning districts concurrent with annexation.

PREPARED BY: Seth Lloyd, AICP, Senior Planner



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for land being annexed (as shown in the attached annexation map) located northwest of the intersection of Roundtop Road and I-80 to LI Light Industrial for land currently zoned County LI Light Industrial, and to BP Business Park for land zoned County PUD Planned Unit Development, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

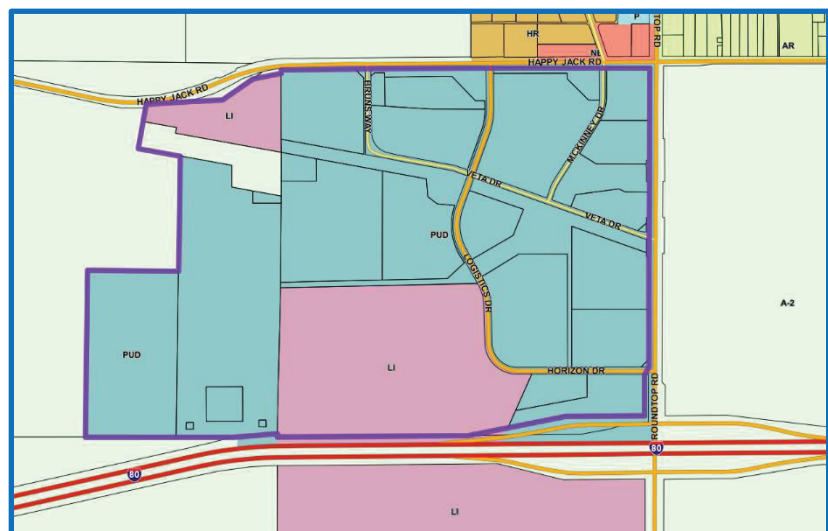
The City of Cheyenne is initiating the annexation of the North Range Business Park. This business park has been using Cheyenne water and sewer service as an outside user. On typical outside user agreements (including the ones entered into here), annexation when eligible is a condition. Recent annexation south of this property has made the property eligible for annexation. Due to an oversight with the required notice, the County A-2 zoned parcel was overlooked. The parcel zoned A-2 Agricultural will return under a separate application to be zoned AG Agricultural within the City.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) The assigned zone is the most analogous City zone to the current zone when considering allowed uses. Zoning for standard County zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis. (UDC 2.2.8.d.1)**

The underlying county zones are County LI Light Industrial, County PUD Planned Unit Development, and County A-2 Agricultural. According to the policy document, the most analogous city zone for the County LI zone is LI Light Industrial, and the most analogous city zone for the County A-2 zone is AG Agricultural. The Assigned Zoning policy document is attached to the staff report as attachment number two.



Current Zoning

The County PUD zone allows a wide variety of industrial, retail, and service uses. Transportation, recreation, and educational facilities are also allowed. The City BP Business Park zone is the City zone which provides for the widest variety of industrial, retail, and service uses. The MUE zone also allows most of these uses, but limits these uses to smaller-scale versions. The PUD applicable in the area being annexed is attached to the staff report as attachment number three.

Establishment of the City zone matches the policy document and the PUD is assigned the most analogous City zone based on the allowed uses; therefore, the item **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for land being annexed northwest of the intersection of Roundtop Road and I-80 to LI Light Industrial, and BP Business Park, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Annexation Map
2. Assigned Zoning Policy Document
3. County PUD applicable in the annexation area and direct comparison to the BP zone

LEGEND



APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,
this _____ day of _____, 2024.

Mayor _____ ATTEST: _____ City Clerk

ANNEXATION AREA

TOTAL AREA: 836.79 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL PERIMETER - 0%

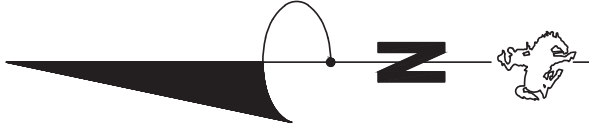
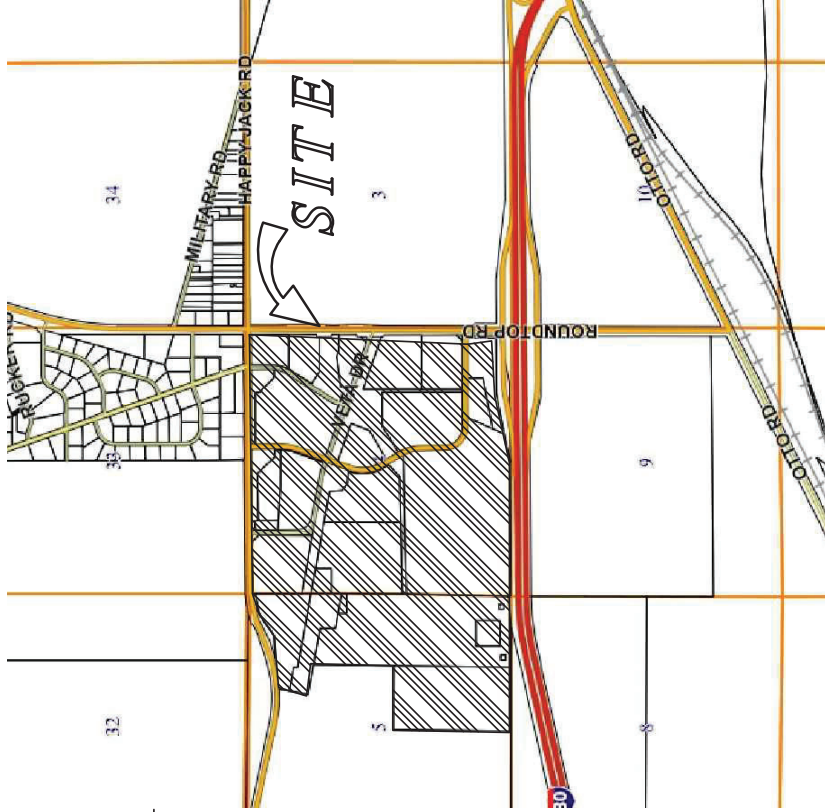
Adjacent per Wyoming State Statute 15-1-402 (b) (across I-80 highway) annexation and ratio to total perimeter - 19%

ANNEXATION DESCRIPTION

Lot 3, Block 1, North Range Business Park;
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Lots 1-5, Block 9, North Range Business Park, 3rd Filing;
Lots 1-6, Block 10, North Range Business Park, 3rd Filing;
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Lot 1, Block 16, North Range Business Park, 11th Filing;
Lot 1, Block 18, North Range Business Park, 12th Filing;
Lots 1-3, Block 1, North Range Business Park, 13th Filing;
Lot 1, Block 1, North Range Substation;
Lot 1, Block 1, BHE Ready Subdivision;
AND
The rights of way for Diamond Creek Drive, Veta Drive, Logistes Drive, McKinney Drive, and Horizon Drive as platted with North Range Business Park, 3rd Filing (noting that "Diamond Creek Drive" as shown on the plat was renamed "Brun's Way" on April 7, 2020, by action of the Board of County Commissioners), Laramie County, Wyoming.

FILING RECORD

EXHIBIT A
ANNEXATION MAP
OF
NORTH RANGE BUSINESS PARK,
LARAMIE COUNTY, WYOMING



VICINITY MAP

(NOT TO SCALE)

PREPARED APRIL 2024

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

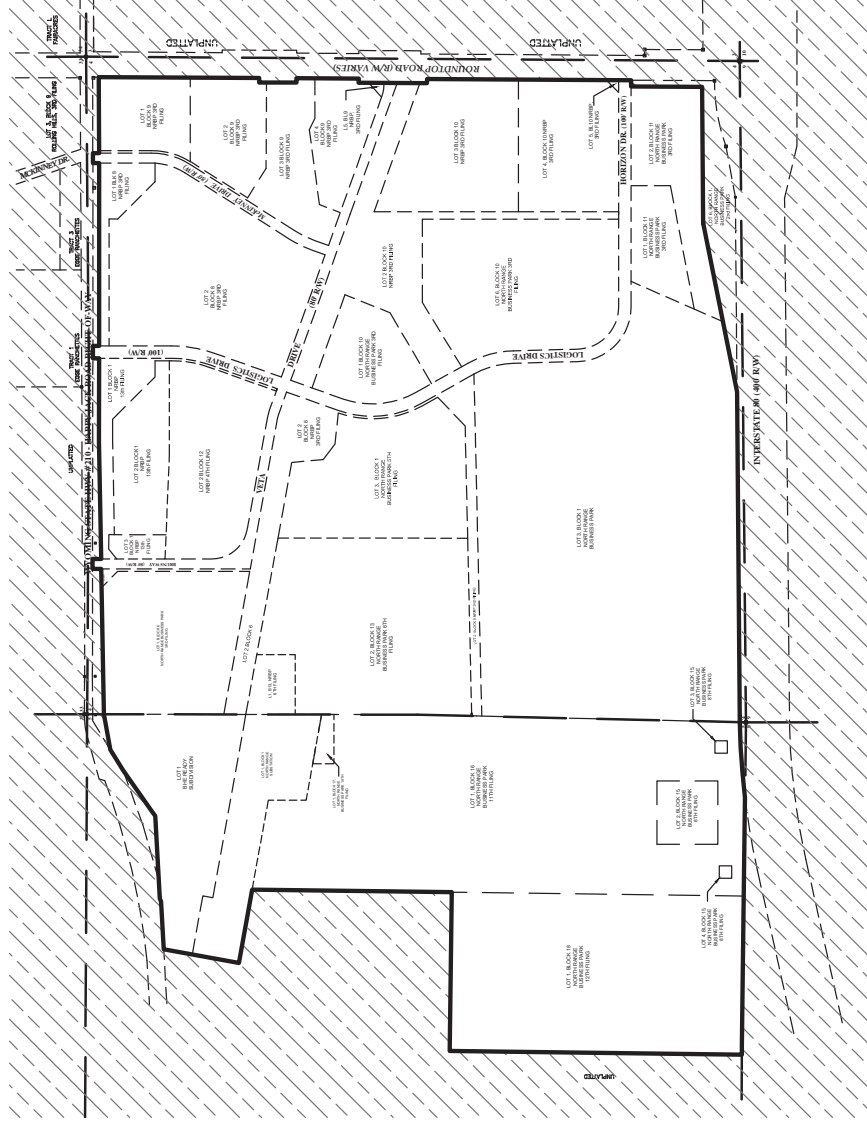
BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.



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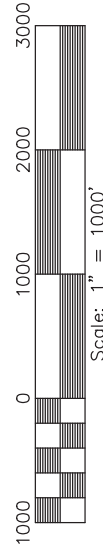
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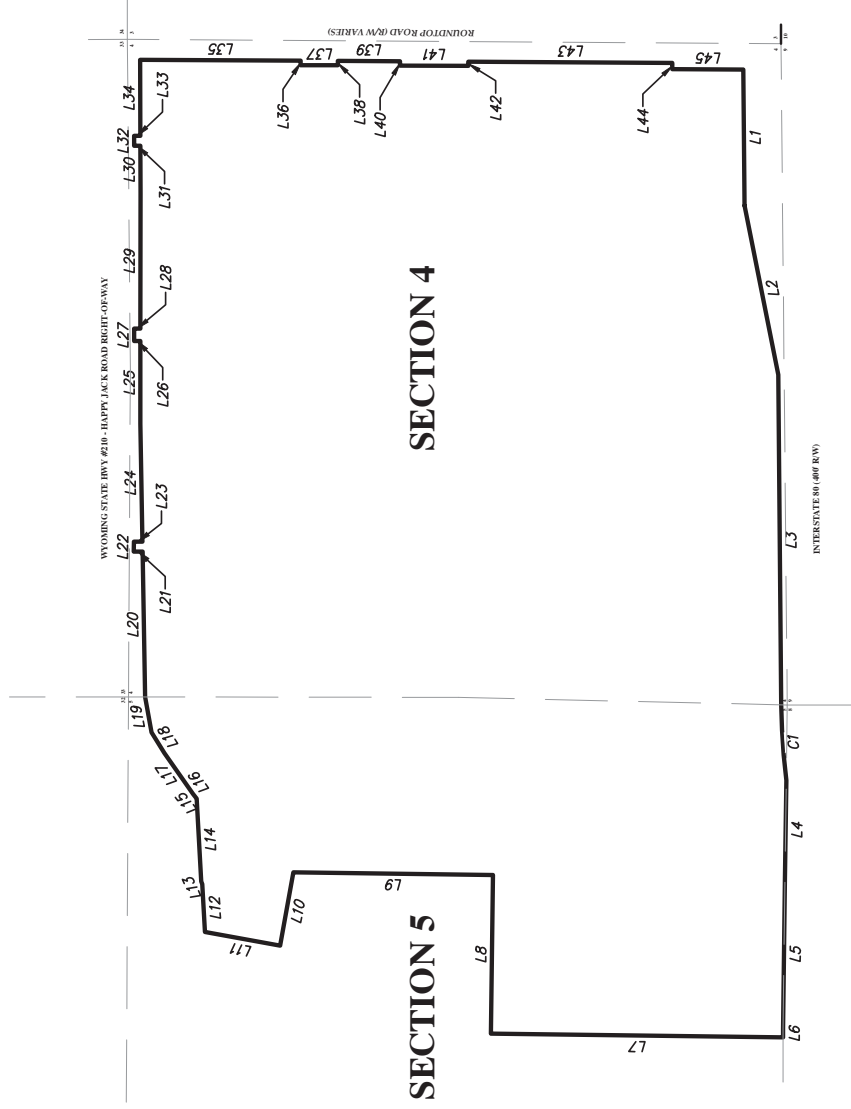
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Scale: 1" = 1000'

FILING RECORD

CURVE TABLE

CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	5° 53' 10"	5929.60'	S86° 05' 14"W	608.90'	609.17'

LINE TABLE

Line #	Bearing	Length
L1	S89° 31' 56"W	1094.80'
L2	S78° 41' 09"W	1389.52'
L3	S89° 31' 22"W	2655.24'
L4	N89° 15' 43"W	791.89'
L5	N89° 15' 43"W	1206.14'
L6	N89° 55' 40"W	70.82'
L7	N0° 44' 26"E	2350.70'
L8	S89° 15' 43"E	1276.96'
L9	N0° 44' 26"E	1606.77'
L10	N79° 45' 14"W	599.85'
L11	N10° 17' 48"E	614.39'
L12	N86° 46' 01"E	386.87'
L13	N65° 31' 19"E	22.45'
L14	N86° 51' 01"E	667.70'
L15	N52° 45' 09"E	48.07'
L16	N55° 07' 45"E	107.21'
L17	N54° 59' 50"E	293.45'
L18	N58° 21' 24"E	196.59'
L19	N79° 32' 59"E	289.47'
L20	N89° 00' 22"E	1169.86'
L21	N0° 00' 00"E	70.47'
L22	S89° 55' 13"E	80.09'
L23	S0° 04' 20"W	68.90'

LINE TABLE

Line #	Bearing	Length
L24	N88° 57' 27"E	948.93'
L25	S89° 56' 04"E	666.14'
L26	N0° 00' 00"E	50.10'
L27	S89° 56' 35"E	100.00'
L28	S0° 00' 00"E	50.00'
L29	S89° 56' 35"E	1088.30'
L30	N89° 50' 18"E	383.20'
L31	N0° 00' 00"E	50.00'
L32	N89° 50' 18"E	80.00'
L33	S0° 00' 00"E	50.00'
L34	N89° 50' 18"E	611.35'
L35	S0° 20' 06"W	1291.34'
L36	N89° 39' 55"W	35.76'
L37	S0° 12' 50"W	300.00'
L38	S89° 39' 55"E	35.13'
L39	S0° 20' 06"W	500.00'
L40	N89° 39' 55"W	34.07'
L41	S0° 12' 50"W	550.00'
L42	S89° 39' 47"E	32.91'
L43	S0° 20' 06"W	1641.81'
L44	S89° 59' 57"W	50.01'
L45	S0° 20' 06"W	571.80'





City of Cheyenne
 Planning and Development Department
 2101 O'Neil Avenue, Room 202 Cheyenne, WY 82001
www.cheyennecity.org/PlanningAndDevelopment

Assigned Zone Chart	
Underlying County Zone	Analogous City Zone
AR - Agricultural Residential	AR - Agricultural Residential
A1 - Agricultural and Rural Residential	AG - Agriculture
A2 - Agricultural	AG - Agriculture
LR - Low Density Residential	LR - Low Density Residential
MR - Medium Density Residential	MR - Medium Density Residential
HR - High Density Residential	HR - High Density Residential
NB - Neighborhood Business	NB - Neighborhood Business
CB - Community Business	CB - Community Business
LI - Light Industrial	LI - Light Industrial
HI - Heavy Industrial	HI - Heavy Industrial
P - Public	P - Public
MU - Mixed Use	MUR - Mixed-use Residential
Zone not listed above	Based on existing uses

RESOLUTION TO ADOPT A CHANGE IN ZONE DISTRICT FROM LI AND CB TO PUD (PLANNED UNIT DEVELOPMENT) FOR NORTH RANGE BUSINESS PARK, 3RD FILING, A REPLAT OF LOTS 1,2 & 4, BLOCK ONE; LOTS 1,2,3 & 4, BLOCK TWO; LOTS 1,2,3 & 4, BLOCK THREE; LOTS 1,2 & 3, BLOCK FOUR; LOTS 1,3 & 4, BLOCK FIVE; NORTH RANGE BUSINESS PARK AND LOT 5-6, BLOCK ONE AND LOT 2, BLOCK FIVE, NORTH RANGE BUSINESS PARK 2ND FILING, LOCATED AT THE SOUTHWEST CORNER OF HAPPY JACK ROAD AND ROUNDTOP ROAD, LARAMIE COUNTY, WY.

WHEREAS, Wyoming State Statutes §18-5-101 to 18-5-107; §18-5-201 to 18-5-208; §18-5-301 to 18-5-315 authorize Laramie County, in promoting the public health, safety, morals and general welfare of the county, to regulate the use of land through zoning in unincorporated Laramie County; and

WHEREAS, the Board of Laramie County Commissioners previously adopted the Cheyenne and Laramie County Zoning Ordinance, 1988; and

WHEREAS, The proposed zone change is in accordance with sections 46.000, 81.010 and 81.020 of the Cheyenne and Laramie County Zoning Ordinance, 1988; and

NOW THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF LARAMIE COUNTY, WYOMING, that the following actions are hereby made.

The Board of Laramie County Commissioners finds that:

- a. This application is in conformance with section 46.000 of the Cheyenne and Laramie County Zoning Ordinance, 1988 governing the criteria for a Planned Unit Development.
- b. The criteria for public hearings has been met pursuant to section 81.010 of the Cheyenne and Laramie County Zoning Ordinance, 1988.
- c. The PUD regulation is consistent with plans and policies of Laramie County.
- d. Based on plans for uniform development of the North Range Business Park, the future character of the area will evolve beyond the current industrial use projections; the PUD will not detrimentally affect the area involved.

and that the Board approves the final plan of the North Range Business Park, 3rd Filing PUD as presented in Exhibit 1.

PRESENTED, READ AND ADOPTED this 6th day of October, 2009.

BOARD OF LARAMIE COUNTY COMMISSIONERS

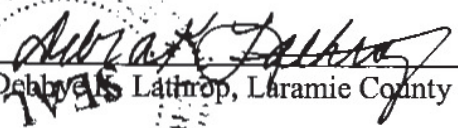

Jeff Ketchum

RECORDED 4/13/2010 AT 8:10 AM REC# 542675 BK# 2159 PG# 1128
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 19

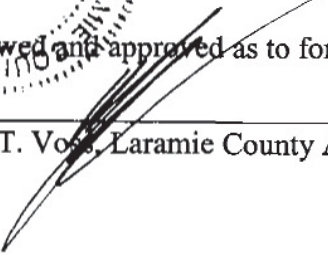

RECORDED 10/21/2009 AT 11:21 AM REC# 532715 BK# 2136 PG# 474
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 2

COPY OF RECORD

ATTEST:


Debra K. Lathrop, Laramie County Clerk

Reviewed and approved as to form:


Mark T. Voss, Laramie County Attorney



RECORDED 4/13/2010 AT 8:10 AM REC# 542675 BK# 2159 PG# 1129
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 2 OF 19

RECORDED 10/21/2009 AT 11:21 AM REC# 532715 BK# 2136 PG# 475
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 2 OF 2

Exhibit 1

Definitions for this PUD:

Electric Sign - Any sign activated or illuminated by means of electrical energy.

Freestanding Sign - A sign principally supported by a foundation, and/or one or more columns, poles, or braces placed in or upon the ground. Refer also to Section III herein for visual reference examples.

Food Service Facilities – any operation that distributes food to the public

Ground Sign – A freestanding sign supported primarily by an internal structural framework or integrated into landscaping or other solid structural features other than support poles.

Master Preliminary Plat – Commercial Preliminary Plat provided with PUD language that is designed to be further subdivided

Master Final Plat – Commercial Final Plat provided with PUD language that is designed to be further subdivided.

Any other definitions refer to County zoning ordinance

A. Use Districts:(See Appendix A)

1. Commercial /Industrial (CI) Allowed Uses: Lots 1 & 3, Block 6, Lot 2, Block 7, Lot 2, Block 8, Lots 1, 3 & 4, Block 9, Lots 1, 3, 4 & 6 Block 10 and Lot 1, Block 11

- a. Any industrial, manufacturing, fabrication or processing uses, associated offices and accessory commercial activities which do not emit noxious noise, smoke, odor or dust beyond the confines of the property, and which do not emit pollutants to the soil;
- b. Child care center minor and major;
- c. Accessory structures;
- d. Recreational facilities;
- e. Retail uses;
- f. Transportation facilities;
- g. Warehousing/Wholesale uses.
- h. Drive-up facilities;
- i. Entertainment facilities and uses;
- j. Food service facilities;
- k. Hotels and motels;
- l. General and Medical Offices;
- m. Service businesses;
- n. Educational Facilities;
- o. Wireless facilities;
- p. Wind Generators;
- q. Solar Generators;

2. Community Open Space (CO): Lot 2, Block 6, Lot 1, Block 7, Lot1, Block 8, Lots 3 & 5, Block 9, Lots 2 & 5, Block 10, Lot 2, Block 11

- a. Open Space/Natural Areas



- b. Detention
- c. Signage/Kiosk
- d. Trails and Park Amenities
- e. Picnic Shelters/Pavilions
- f. Recreational Courts/Facilities
- g. Public Art

B. Platting Requirements

A new Master Preliminary Plat, Master Final Plat and Subdivision Permit shall be submitted for approval prior to the issuance of any building permit for property within this PUD. All of the property within this PUD shall be platted into appropriate lots, rights of ways and tracts. The requirements for platting as defined in Wyoming State Statute §18-5-306 shall be submitted to the County for approval. The Master Preliminary Plat, Master Final Plat and Subdivision permit shall be processed and administered in accordance with the applicable State Statutes and County regulation.

Subsequent to the approval of the Master Final Plat and Subdivision Permit, each lot or tract created with the Master Final Plat and located in the CI use area may be further subdivided up to a maximum of four (4) lots. The provisions required under Wyoming State Statute §18-5-306(a) allow the Board to exempt the requirements for subdivision permits outlines in W.S. 18-5-306. For divisions of four or less, the County shall exempt these divisions from the requirements of W.S. 18-5-306 provided that the proposed subdivision is in conformance with the Master Final Plat, Master Drainage Plan and the requirements of this PUD. Any division of lots and tracts of more than four divisions or for those lots within the CO use area, the requirements of W.S. 18-5-306 shall be met and shall require a subdivision permit to be processed and administered in accordance with all applicable State Statutes and County regulations. Any division of land created pursuant to an exemption from the provisions of W.S. 18-5-306 shall not be further subdivided without meeting the provisions of W.S. 18-5-306.

Applications for subdivision permits of four or less for said lots or tracts shall be accompanied by a final plat drawing and a fee equivalent to the cost of processing the application per County requirements,

1. Upon receipt and acceptance of the application for subdivision permit, the County shall schedule a hearing before the Planning Commission at the next available date, but in no case more than 30 days. The Planning Commission shall make recommendation to the Laramie County Board of Commissioners regarding the application. The Planning Commission shall review the application to find the following:
 - a. That the proposed subdivision permit is in substantial conformance with the approved Master Final Plat
 - b. That public access is provided to all lots and tracts
 - c. That drainage is addressed in conformance with the Master Drainage Plan.

The recommendation of Planning Commission shall be forwarded to the Board at the next available Board hearing, but in no case more than 30 days. The Board shall hear and



act on the subdivision permit as expediently as possible.

C. Development Standards

A. Maximum Building and Site Coverage:

1. Commercial/Industrial lots shall not exceed 90% coverage of the property area for building, parking and outdoor storage.
2. Open Space, Detention, Signage and Trail lots shall not exceed 20% coverage of the property area for building, parking and outdoor storage.

B. Maximum Building Height:

1. There are no height limitations in this district

C. Setbacks:

1. All buildings, parking and outside storage within CI and CO use areas shall be setback a minimum of 30 feet from all dedicated public rights of ways
2. All buildings, parking and outside storage within CI and CO use areas shall be setback a minimum of 10 feet from all other internal property lines located within this PUD . Setbacks may be reduced to zero (0) if a minimum separation of 20 feet is provided from all other buildings, outdoor storage or parking areas on adjacent lots.
3. All buildings, parking and outside storage within CI and CO use areas shall be setback a minimum of 25 feet from all perimeter property lines outside of this PUD.

D. Development Performance Standards:

1. The primary building and any accessory buildings to the primary building shall complement each other in architectural style and materials. A letter from the commercial owners association shall be provided to the County with the site plan approving the architectural style and materials.
2. Monument signing, wayfinding signage and landscaping throughout and/or at entrances to Park shall be allowed. Appendix B illustrates possible locations of these signs.
3. The North Range Business Park shall incorporate a trail system for connectivity of lots. The trail shall be 10' wide and consist of stabilized crusher fines or other approved soft trail system. Appendix C illustrates typical design parameters of trails.



E. Site Plan, Landscaping, Buffering and Screening Requirements:

1. Site Plan Requirements.

A County approved Site Plan is required prior to issuance of any building permit and for any new or change of use of land as defined in the Cheyenne and Laramie County Zoning Ordinance, 1988, as amended. All site plans shall be prepared and completed in conformance with these regulations and any items not specified within these regulations must meet the Cheyenne & Laramie County Zoning Ordinance 1988 as amended. Site specific drainage, traffic and construction design plans may be required as part of any site plan submittal.

A site plan shall be valid for a period of two (2) years from the date of approval. If substantial start of construction has not commenced within this two (2) year period, the site plan approval shall expire. A site plan approval may be extended by the Director of Planning for up to 12 months if it is found that the site plan is in substantial conformance with existing and amended regulations and that substantial construction will commence within the 12 month extension period. Substantial start of construction shall mean that building permits have been issued for principle structures and grading and earthwork has begun.

2. Landscape Plan Requirements.

A landscape plan, that includes abutting adjacent right-of-way landscaping, shall be submitted for review and approval as part of any required site plan review.

3. Landscape Material Specifications

The minimum planting/installation size and characteristics of plant materials which are required by this Article shall be as follows:

- a. Deciduous shade trees: one and a half (1 ½ ") caliper measured six inches (6") above ground.
- b. Deciduous ornamental trees: one and one-half inch (1½") caliper measured six inches (6") above ground.
- c. Evergreen trees: six feet (6') in height when measured from the ground to the midpoint between the uppermost whorl and the tip of the leader.
- d. Evergreen and deciduous shrubs: minimum five (5) gallon container.
- e. Ground covers and vines: 2¼ inch container.
- f. All landscape areas shall have the existing soil prepared. Soil preparation and top-dress fertilization shall be consistent with the cultural needs of the plant species proposed for each category. Minimum incorporation requirements are 3 cubic yards of organic matter per 1,000 square feet in landscape planting areas. Acceptable organic matters

include aged compost, wood humus from soft/non-toxic trees, sphagnum moss, or aged/treated (minimum two years aged) manures. Fertilizer should be consistent with soil analysis requirements and cultural plant needs. Soil amendments shall be properly prepared (composted manures processed 3-5 years, with carbon to nitrogen ratio of 11-15% to 1.) Tilling of soil to incorporate amendments and counter any compaction or soil consolidation shall be required for all landscape planting areas. Recommended tilling depths are 6-12". Minimum required depth is 4". Prior to issuance of a certificate of occupancy for any structure, the owner shall provide to the County verification that the soil has been prepared as required.

h. The following minimum requirements shall apply to any development plan:

Number of trees on site	Maximum percentage of any one species
10-19	60%
20-39	45%
40-59	35%
60 or more	25%

4. General Landscape Requirements

a. Required minimum perimeter landscaped areas.

(i) Minimum depth of perimeter landscaped area:

The required perimeter landscaped area shall be the area defined from the lot line to the building setback line for each lot. The required perimeter landscaped area shall consist of a minimum of ninety-five percent (95%) ground cover by living materials that are listed within this PUD. The remaining five (5%) may be covered with bark, wood chips, rock, stone, or similar non-living materials.

(ii) Percentage in Living Materials: All areas not covered by building or parking must be landscaped with the plant materials listed within this PUD. Required landscape area shall consist of a minimum of ninety-five percent (95%) ground cover by living materials. The foliage crown of deciduous trees shall not be used in the ninety-five percent (95%) or other required percentage calculation. The remaining five percent (5%) of the required landscape area may be covered with bark, wood chips, rock, stone, or similar non-living materials.

(iii) No display of merchandise, goods, equipment for sale or lease, advertising banners, or portable signs shall be allowed within the landscape setback areas unless designed and approved with the site plan.

b. Required Internal Landscaping for commercial/industrial lots:

(i) Purpose. "Internal" landscaping requirements are intended to augment the perimeter landscape area requirements and promote the uniqueness and quality of the

North Range Business Park. The purpose of "internal" landscaping around the building and parking is to visually soften the mass of buildings and to visually separate building areas from parking areas. Landscaping of large areas away from building and parking is designed to incorporate the look and feel of natural landscape within the area. It is recognized that some flexibility in the design of spaces and tree selection is needed. This flexibility is needed because of:

- (a) the diversity of building designs; and
 - (b) the possible limitations on plant selections due to building foundation problems posed by the root growth of some trees; and
 - (c) the building foundation problems posed by the irrigation of expansive soils.
 - (d) Appendix F establishes the overall design intent for the North Range Business Park that is promoted with these landscape regulations.
- (ii) The area of a property that requires internal trees is ten percent 10% of the property. These requirements apply to all projects requiring site plan review.
- (iii) Minimum number of trees in the internal landscaping area: A minimum of one living tree for every one thousand (1000) square feet of the required minimum internal landscaping area.
- (a) Up to ten (10) percent of the required trees may be substituted by shrubs. Ten (10) shrubs with a minimum container size of five (5) gallons shall be provided for each tree that is replaced.
 - (b) Up to ten (10) percent of the required trees may be substituted by boulders. One (1) tonnage of moss rock shall be provided for each tree that is replaced.
 - (c) Up to twenty (20) percent of the required trees may be located in CO lots instead of the CI lot.
- (iv) Standards for the minimum area: To be credited toward the minimum internal landscaping area requirement, forty (40) percent of the landscaping area shall be located as follows and be on a permanent irrigation system:
- (a) Adjacent to those building elevations which form the major public views of the building from adjacent streets and properties and to the users of the building; or
 - (b) Within a plaza or courtyard between buildings or portions of buildings; or

- (c) In a space provided to separate building areas from parking lots; or
- (d) Surrounding parking lots;
- (v) Design Standards: The minimum required internal landscaping area shall consist of a minimum of ninety-five percent (95%) ground cover by living grass or other plant materials. This percentage provides flexibility where plants and their irrigation should be limited next to building foundations.
- (vi) To provide for continuity with the business park the developer may select the types and the planting spaces between the required trees based on the list in Appendix D. The planting spacing should allow for the growth characteristics of the trees without adversely affecting the maintenance of structures, walks, or drives. Appendix D provides a list of acceptable plant species, however if a different species is requested, a letter from the commercial owners association shall be provided to the County with the site plan approving the plant.
- (vii) The minimum planting sizes of trees shall comply with the specifications provided in this ordinance above except within wind and snow rows.

c. Required Internal Landscaping of open space, detention and signage and trail lots.

- (i) Purpose. The landscaping of these areas to create landscaping in the areas that are better suited to support the landscaping with no supplemental irrigation while still providing an inviting area for the users of the park to enjoy.
- (ii) The area of a property that requires internal trees is ten percent 10% of the property. These requirements shall be met when the subject area is to be used for stormwater detention and therefore shall be submitted with the Site Plan for the corresponding commercial/industrial site. However the developer may submit a separate site plan for these locations without a corresponding site.
- (iii) Minimum number of trees in the open space, detention, signage and trail lots: A minimum of one living tree for every one thousand (1000) square feet of the required minimum internal landscaping area.
 - (a) Up to ten (10) percent of the required trees may be substituted by shrubs. Ten (10) shrubs with a minimum container size of five (5) gallons shall be provided for each tree that is replaced.
 - (b) Up to ten (10) percent of the required trees may be substituted by boulders. One (1) tonnage of moss rock shall be provided for each tree that is replaced.
- (iii) Any areas not covered with parking, park amenities, signage and trails

must be landscaped with the approved types of ground cover within Appendix D. Due to the specific type of trees and their location, an irrigation system may not be required on these lots

(iv) The planting spacing and location should allow for the growth characteristics of the trees without adversely affecting the maintenance of structures, walks, or drives.

(vii) The minimum planting sizes of trees shall comply with the specifications provided in this ordinance above except within wind and snow rows.

d. Screening and Buffering:

Parking areas shall not be allowed in screening and buffering areas.

Trash collection areas and trash bins shall not be allowed within screening and buffering areas.

There shall be no storage of merchandise and supplies within screening and buffering areas.

(e) Other Landscape Regulations:

(i) Landscaping shall not conflict with the traffic visibility requirements as required by County regulations.

(ii) Artificial trees, shrubs, vines, turf, or other plants shall not be considered as outside landscape materials for projects requiring site plan review.

(iii) Clumps of trees (such as *Populus Tremuloides*), where used, shall be credited as only one of the required trees.

(iv) Landscaping should not interfere with the general function, safety or acceptability of any gas, electric, water, sewer, telephone, or other utility easement. Landscaping shall be limited to an eight inch (8") mature height within three feet (3') of a fire hydrant.

(v) The healthy existing indigenous vegetation on a site may be credited toward required landscaping as determined by the Director.

(vi) Where two (2) different landscape requirements apply, the greater requirements shall be met.

5. Maintenance:

a. The landowner is responsible for the maintenance of the landscaping as

originally approved.

b. The landowner is responsible for all regular and normal maintenance of landscaping including weeding, irrigation, fertilizing, pruning and mowing.

c. Plant materials which exhibit evidence of insects, pests, disease and/or damage shall be appropriately treated and all dead plant material shall be removed and replaced with living plant material. Trees that expire before July 1 will be replaced by that July 1.

d. Performance Standard for Seeded Areas: Seeded landscape areas shall have no bare areas larger than one hundred forty-four (144) square inches after germination. Ground cover that dies within the growing season must be replaced within thirty (30) days. Ground cover that dies after the growing season shall be replaced by the following June 1.

G. Signage:

Purpose: To provide signage and way finding that is consistent and promotes the uniqueness and quality throughout the North Range Business Park

1. The following temporary signs are allowed and exempt from the design standards set forth for permanent signage:

a. Construction signs: one construction sign for each street frontage of a construction project, not to exceed sixty-four (64) square feet in area. Such signs may be erected forty-five (45) days prior to construction and shall be removed within ten (10) days following completion of construction;

b. Real estate signs: one non-illuminated, double-faced real estate sign is allowed per street frontage, not to exceed 48 square feet in area and 10 feet in height; non-illuminated incidental commercial signs not exceeding nine square feet in area;

c. Holiday or Other Special Event Signs and Decorations. Such signs and decorations may be erected sixty (60) days prior to a holiday or special event and shall be removed within ten (10) days following the holiday or special event;

d. Government signs;

e. Temporary signs identifying an architect, engineer, contractor, subcontractor, financing institution and/or material supplier participating in construction on the property upon which the sign is located. The sign may be placed the day construction commences and shall be removed the day of completion. Signs shall be located on private property and shall not exceed sixteen (16) square feet in area.

2. The following signs are allowed on the individual commercial lots. Designs



shall meet the standards for signs as provided in this PUD including but not limited to size and location. The approved design standards of primary entry monuments, way finding, tenant ID and street signs and must not be located within the setback area.

A letter from the commercial owners association stating the sign meets their requirements must be provided to the County when the developer submits for a sign permit.

- a. Window signs and signs in the interior of buildings;
- b. Drive-up menu boards, provided such signs do not exceed forty (40) square feet in area and eight feet in height;
- c. Flags not exceeding sixty (60) square feet in area and flown from a pole the top of which is not more than forty (40) feet in height. Flags of the US, State of Wyoming, and government flags are exempt. The Stars and Stripes shall be flown in accordance with protocol established by the Congress of the United States;
- d. Works of art that do not include a commercial message;
- e. Banners and pennants;
- f. Electronic signs;
- g. Wall signs;
- h. Awning signs;
- i. Canopy signs;
- j. Integral roof signs;
- k. Projecting signs;
- l. Icon signs;
- m. Lot profile signs;
- n. Changeable signs;
- o. Nameplates: one non-illuminated nameplate, attached to a building, not exceeding two square feet in area, per occupancy;

3. Primary entrance signs, tenant id signs, way finding signs and street signs must comply with the following. These signs may be place within the easements of North Range Business Park 3rd Filing if written approval is granted by the users and grantees of the easements and the County Engineer. Appendix E illustrates the signs listed below:

- a. Primary entrance signs
 - (i) Background consists of Corten Steel Panel. . Stainless steel accents and raised lettering. Include boulder accents.
 - (ii) Sign may not exceed 40' in width or 8' in height. The height of the related boulder shall not exceed 15 feet.
- b. Tenant Id signs and Way Finding Sign
 - (i) Background consists of Corten Steel Panel. Stainless steel accents and raised lettering. Stone base to sign to match primary entrance stone in color.
 - (ii) Tenant ID Sign to not exceed 12' in width and 8' in height including base.
 - (iii) Way Finding Sign to not exceed 10' in width and 8' in height

- including base.
- c. **Street Signs**
- (i) Mounted on 3" x 3" black painted steel post with steel support brackets.
 - (ii) Steel Panel painted brown with white reflective lettering not to exceed 4' in length.
 - (iii) Stop signs to be mounted 8' above ground.

4. **Size Restrictions.** Signs allowed in the NRBPU D zone shall comply with size, height and location requirements in Figure 2 below:

Figure 2
Requirements for Ground Signs

Distance from Street Right-of-Way Line (feet)	Maximum Height Overall (feet)	Maximum Size Allowed per Side (square feet)
0	10	20
5	12	30
10	14	40
15	16	50
20	18	60

Requirements for Freestanding Signs

25	20	70
30	25	80
35	30	90
40	35	90
45	35	90
50 and more	35	90

- a. Business centers with multiple businesses per lot and building complexes are allowed one freestanding or ground sign per street frontage.
- b. Wall signs are allowed provided the sign area does not exceed twenty (20) percent of the area of the wall to which the sign is attached, not to exceed four hundred (400) square feet.
- c. Awning and canopy signs are allowed, provided they are placed at least eight feet above the sidewalk or grade and do not exceed six feet in awning or canopy height. Illuminated awnings are allowed only with reverse copy with no white or ivory background.
- d. Projecting signs shall be designed and installed to accommodate pedestrian traffic. Such signs shall not exceed twenty (20) square feet in area, and

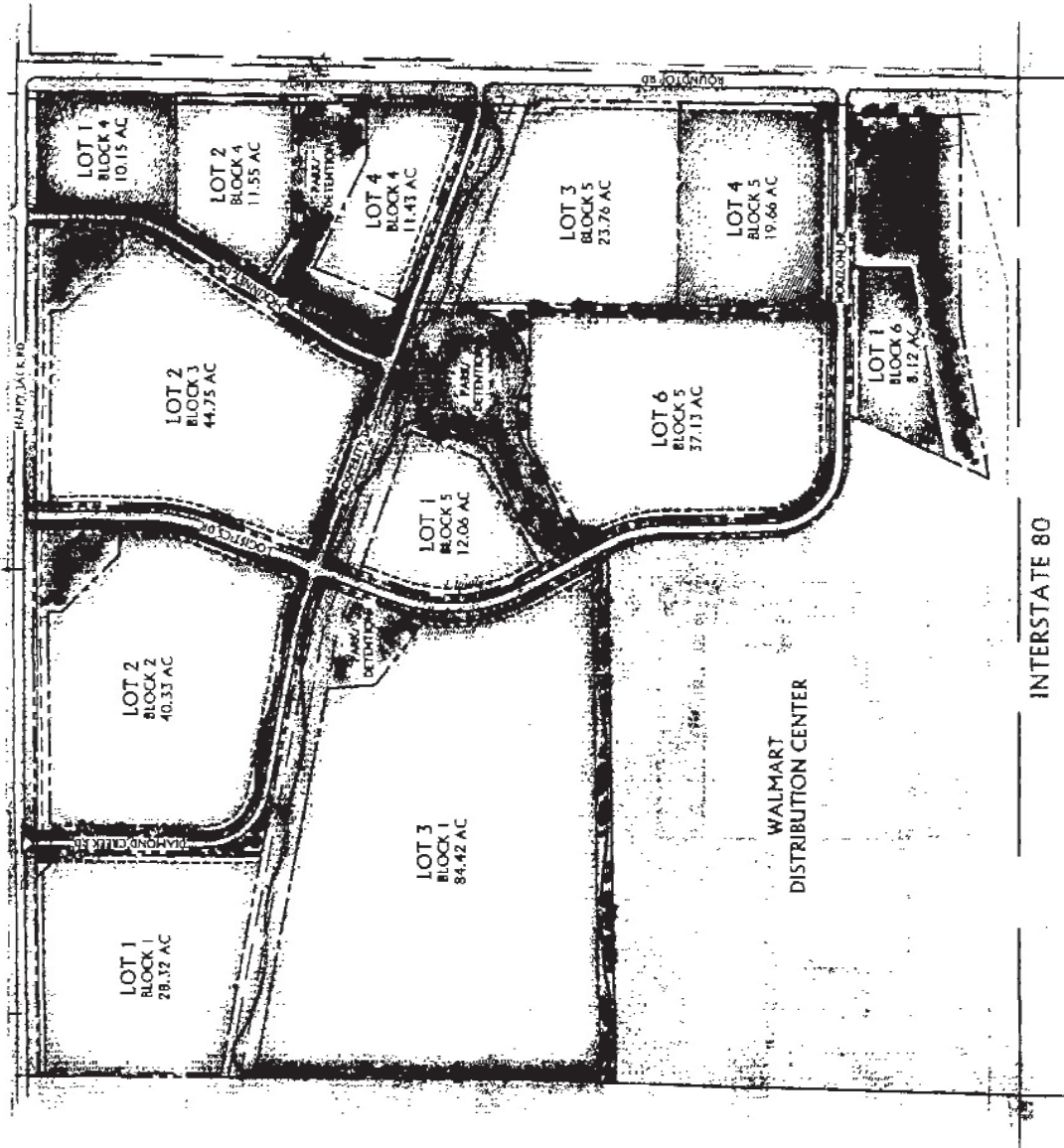
shall have a minimum of eight feet of clearance above the sidewalk or grade. The maximum projection (feet), clearance (feet) and thickness (feet) of projecting signs shall be determined by the Uniform Sign Code requirements.

e. Sign cabinets shall be finished. Aluminum sign cabinets shall be painted or anodized and shall not be mill-finished aluminum. Electrical conduit shall not be routed along the outside of walls to a sign, but shall be routed through the wall at the sign location. Indirect lighting shall be shielded so as not to create a glare to vehicle or pedestrian traffic.

H. Parking:

Parking requirements for each specific use shall be required in conformance with the most recent edition of the International Traffic Engineers Parking Generation Manual. The Director of Planning may grant a 25% reduction for mixed use areas or for overall reductions related to alternative transportation efforts and combined use areas

Appendix A/C



NRBP Master Plan

Scale: 1" = 1000'

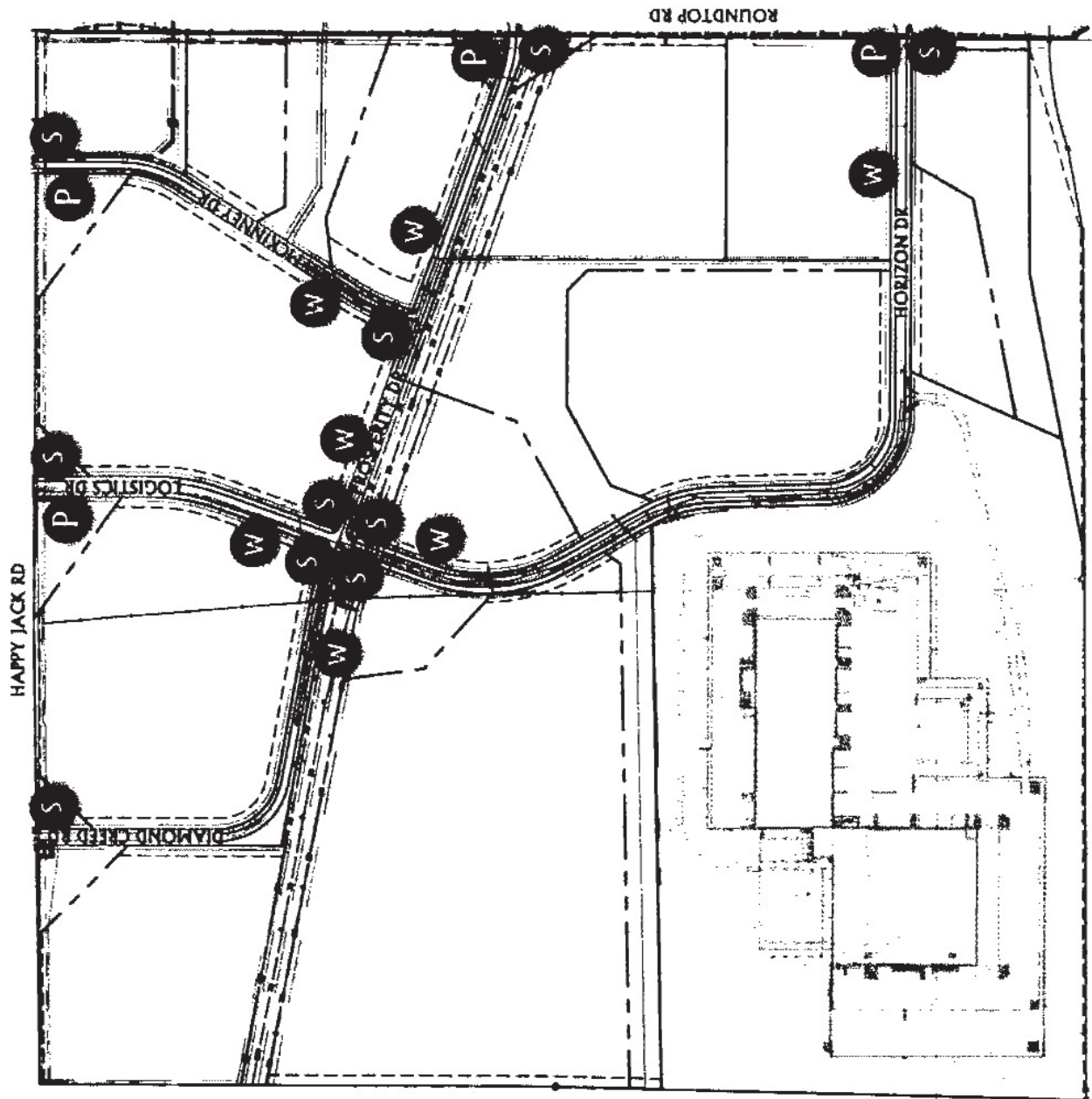


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NORTH RANGE BUSINESS PARK

Appendix B



- P** PRIMARY ENTRY MONUMENT
- S** STREET SIGN
- W** WAYFINDING SIGN



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North Range Business Park Plant List

Upland Zone Planting

Deciduous Trees

Acer glabrum	Rocky Mountain Maple	L
Acer grandidentatum	Bigtooth Maple	M
Prunus americana	American Plum	M
Fraxinus pennsylvanica	Green Ash	M
Quercus bicolor	Swamp White Oak	L
Quercus macrocarpa	Bur Oak	L

Evergreen Trees

Juniperus osteosperma	Utah Juniper	L
Juniperus scopulorum	Rocky Mountain Juniper	VL
Pinus edulis	Pinyon Pine	VL
Pinus flexilis	Limber Pine	L
Pinus nigra	Austrian Pine	L

Deciduous Shrubs

Amelanchier alnifolia	Serviceberry	VL
Amorpha canescens	Leadplant	L
Amorpha fruticosa	False Indigo	L
Artemisia frigida	Fringed Sage	VL
Atriplex canescens	Four-Wing Saltbrush	VL
Chrysothamnus nauseosus	Rabbitbrush	L
Physocarpus malvaceus	Mallow Ninebark	L
Prunus besseyi	Western Sand Cherry	L
Prunus besseyi 'Pawnee Buttes'	Creeping Western Sand Cherry	L
Prunus virginiana	Chokecherry	L
Purshia tridentata	Antelope Brush	L
Rhus glabra	Smooth Sumac	L
Rhus trilobata	Skunkbush	L
Ribes aureum	Golden Currant	L
Ribes cereum	Wax Currant	L
Ribes odoratum	Golden Currant	L
Rosa woodsii	Woods Rose	M
Rubus parviflorus	Thimbleberry	M
Sambucus racemosa var. melanocarpa	Black Elderberry	VL
Shepherdia argentea	Silver Buffaloberry	L
Symphoricarpus albus	Snowberry	

Evergreen Shrubs

Arctostaphylos uva-ursi	Kinnikinnik	VL
Artemesia tridentata	Tall Western Sage	M
Ceanothus velutinus	Buckbush	L
Cercocarpus ledifolius	Curl-Leaf Mountain Mahogany	L
Cercocarpus montanus	Mountain Mahogany	L
Juniperus communis var.	Common Juniper	L
Juniperus horizontalis var.	Creeping Juniper	L



Krascheninnikovia lanata Winterfat L

Deschampsia caespitosa Tufted Hairgrass L
Festuca idahoensis 'Siskiyou Blue' Siskiyou Blue Idaho Fescue Grass M
Hesperostipa comata Needle and Thread L

Antennaria parviflora Pussytoes L
Erigeron speciosus Aspen Daisy L
Eriogonum umbellatum Sulfur Flower VL
Gaillardia aristata Native Blanket flower L
Oenothera caespitosa White Evening Promrose VL
Penstemon cyananthus Wasatch Penstemon VL
Penstemon grandiflorus Shell Leaf Penstemon L
Penstemon strictus Rocky Mountain Penstemon L

Riparian Zone Planting

Botanical Name Common Name Water Use

Deciduous Trees

Alnus incana ssp. tenuifolia Thinleaf Alder H
Betula occidentalis Mountain Birch H
Populus acuminata x sargentii 'Highland' Highland Cottonwood M
Populus deltoides ssp. monilifera Plains Cottonwood M
Populus tremuloides Quaking Aspen M
Salix amygdaloides Peachleaf Willow H

Evergreen Trees

Picea pungens Blue Spruce M

Deciduous Shrubs

Cornus sericea Red-Osier Dogwood H
Lonicera involucrata Black Berry Honeysuckle H
Phyllodoce empetrifloris Pink Mountain Heather M
Rosa nutkana Nootka Rose H
Salix exigua Coyote Willow H
Sorbus scopulina Western Mountain Ash M
Spiraea splendens var. splendens Subalpine Spiraea M

Grasses

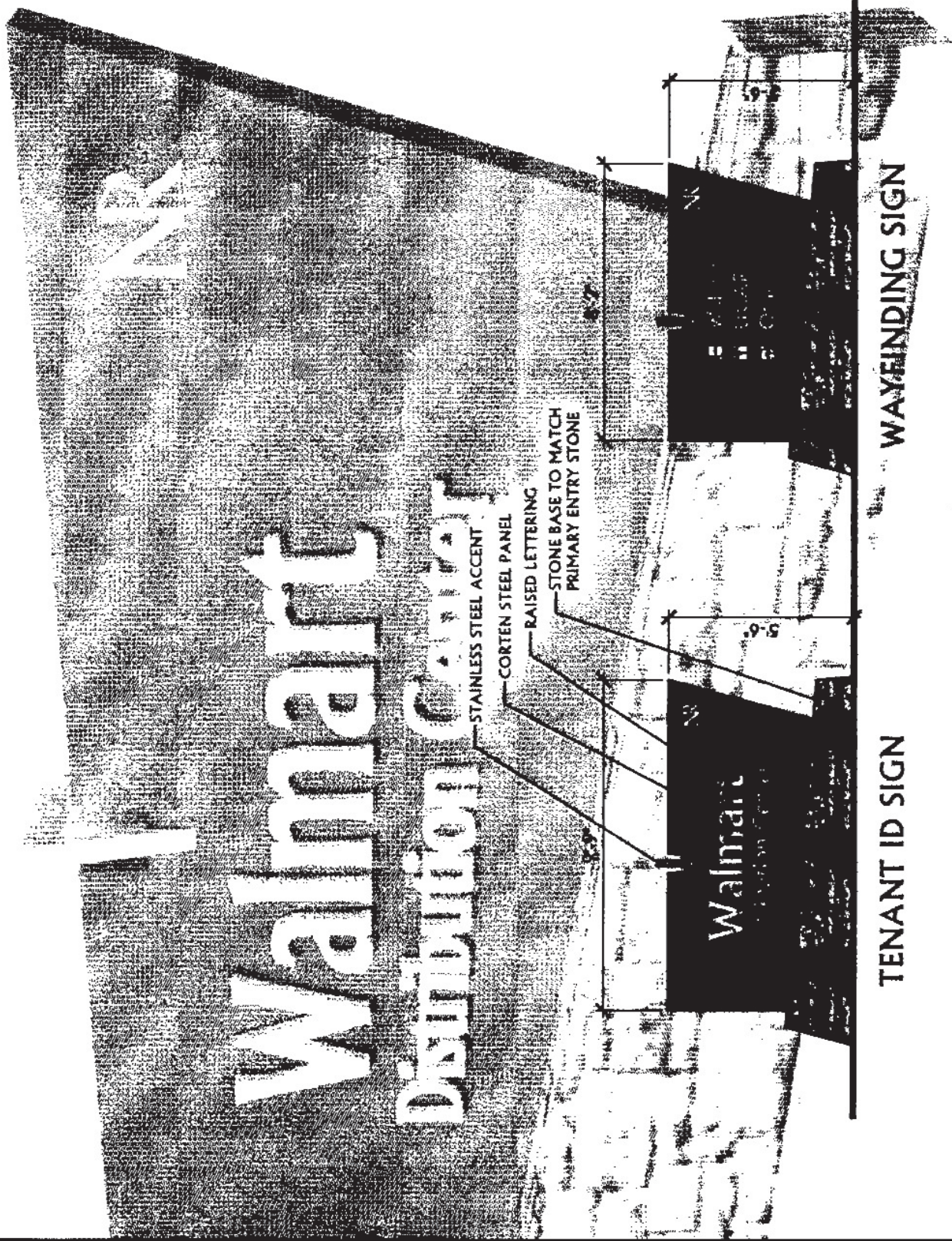
Calamagrostis canadensis Bluejoint Reedgrass M
Koeleria macrantha Prairie Junegrass H

Perennials

Aquilegia caerulea Blue Columbine
Aquilegia flavescens Yellow Columbine M
Fragaria vesca Woodland Strawberry M
Iris missouriensis Rocky Mountain Iris M
Rudbeckia occidentalis Western Cone Flower H

Appendix E

NORTH RANGE BUSINESS PARK



City BP - Business Park
<i>Uses By Right</i>
Community Athletic Field
Developed Athletic Field or Stadium
Service Business - Limited
Service Business - General
Child Care Center (CCC)
Entertainment, Indoor Recreation Facility
Entertainment, Outdoor Recreation Facility
Entertainment, Entertainment Venue (1000+ Maximum occupancy)
Kennel
Lodging, Hotel / Motel
Medical Care, Clinic and Office
Medical Care, Hospital
Home occupations
Office – Limited (<3,500)
Office – general (3,500 – 20K)
Office – Major Office Complex (>20K)
Convenience Retail / Corner Store (<2k)
Neighborhood Retail (2K - 5K)
General Retail (5K - 25K)
Large-scale Retail (25K - 100K)
Warehouse Retail (>100K)
Grocery Store <45K
Supermarket >45K
Automobile Service Repair
Automobile Service Station - Limited
Automobile Service Station - General
Automobile Service Station - Large-scale
Food Service – Limited (under 2K)
Food Service – General (2K – 4K)
Food Service – Large-scale (over 4k)
Data Center
Limited Industrial
Moderate Industrial
General Industrial
Limited Outdoor Storage
Railroad yards and maintenance buildings
Commercial and Public Parking Facility
Government Facility
Transportation Facility
Utility Stations
<i>Uses requiring Administrative approval</i>
<none>
<i>Uses requiring Board Approval (Conditional Use)</i>
Live/Work
Mixed-use Dwelling
Neighborhood Assembly (<350 maximum occupancy)
Community Assembly (350 - 1000 maximum occupancy)
Primary and secondary schools
Educational facilities
Entertainment, Amusement, Recreation—Other
Storage Yard
Outdoor Sales, Seasonal
Outdoor Sales, Event or Display Area
Outdoor Sales, Limited
Outdoor Sales
Industrial
Recycling Services

County PUD (Res 091006-32)
<i>Uses By Right in CI areas</i>
Any industrial, manufacturing, fabrication or processing uses, associated offices and accessory commercial activities which do not emit noxious noise, smoke, odor or dust beyond the confines of the property, and which do not emit pollutants to the soil
Child care center minor and major
Accessory structures
Recreational facilities
Retail uses
Transportation facilities
Warehousing/Wholesale uses
Drive-up facilities
Entertainment facilities and uses
Food service facilities
Hotels and motels
General and Medical Offices
Service businesses
Educational Facilities
Wireless facilities
Wind Generators
Solar Generators
<i>Uses By Right in CO areas</i>
Detention
Signage/Kiosk
Trails and Park Amenities
Picnic Shelters/Pavilions
Recreational Courts/Facilities
Public Art